

**SENATE . . . . . No. 791**

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**The Commonwealth of Massachusetts**

PRESENTED BY:

*Liz Miranda*

*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

**An Act relative to nature as a prescription.**

PETITION OF:

| NAME:               | DISTRICT/ADDRESS:     |                  |
|---------------------|-----------------------|------------------|
| <i>Liz Miranda</i>  | <i>Second Suffolk</i> |                  |
| <i>Mindy Domb</i>   | <i>3rd Hampshire</i>  | <i>1/21/2025</i> |
| <i>Rob Consalvo</i> | <i>14th Suffolk</i>   | <i>9/30/2025</i> |

# SENATE . . . . . No. 791

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By Ms. Miranda, a petition (accompanied by bill, Senate, No. 791) of Liz Miranda and Mindy Domb for legislation relative to nature as a prescription for mental health services. Financial Services.

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## The Commonwealth of Massachusetts

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In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act relative to nature as a prescription.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           SECTION 1. Chapter 32A of the General Laws, as appearing in the 2020 Official  
2           Edition, is hereby amended by adding the following section:-

3           Section 33. The commission shall provide to any active or retired employee of the  
4           commonwealth who is insured under the group insurance commission coverage for accessing  
5           nature as a medical treatment when prescribed pursuant to section 42E of chapter 112, as mental  
6           health services when prescribed pursuant to section 42F of said chapter 112 and as social  
7           rehabilitation services when referred pursuant to section 42G of said chapter 112.

8           SECTION 2. Chapter 112 of the General Laws, as so appearing, is hereby amended by  
9           inserting after section 42D the following 3 sections:- Section 42E. Any person authorized to  
10          prescribe or dispense of controlled substances pursuant to section 9 of chapter 94C may, when  
11          acting in accordance with any provision of this chapter and in good faith and in the course of a  
12          professional practice for the alleviation of pain and suffering or for the treatment or alleviation of

disease, prescribe outdoor time for accessing nature as may reasonably be required for the purpose of patient treatment.

Section 42F. Any persons licensed in the Commonwealth to provide counseling or other mental health services pursuant to this chapter may, when acting in accordance with any provision of this chapter and in good faith and in the course of a professional practice for the treatment or alleviation of mental health symptoms, prescribe outdoor time for accessing nature as may reasonably be required for the purpose of client treatment.

Section 42G. Any persons licensed to provide social services to individuals experiencing social or emotional trauma including, but not limited to, job loss, divorce, food insecurity, immigration or probation may, when acting in good faith and in the course of a professional practice to meet the needs of community members, refer clients to outdoor time for accessing nature as may reasonably be beneficial to their social rehabilitation.

SECTION 3. Chapter 118E of the General Laws, as so appearing, is hereby amended by inserting after section 10Q the following section:-

Section 10R. The division and its contracted health insurers, health plans, health maintenance organizations, behavioral health management firms and third-party administrators under contract to a Medicaid managed care organization or primary care clinician plan shall provide coverage for accessing nature as a medical treatment when prescribed pursuant to section 42E of chapter 112, as mental health services when prescribed pursuant to section 42F of said chapter 112 and as social rehabilitation services when referred pursuant to section 42G of said chapter 112.

SECTION 4. Section 7 of Chapter 132A of the General Laws, as so appearing, is hereby amended by adding the following paragraph:-

Notwithstanding the provisions of the first paragraph, the commissioner shall waive all fees and other charges for the parking of vehicles and for the enjoyment of other special privileges within the territory under the control of the division for those individuals enrolled in MassHealth.

SECTION 5. Chapter 175 of the General Laws, as so appearing, is hereby amended by inserting after section 47TT the following section:-

Section 47UU. An individual policy of accident, sickness or mental health insurance issued under section 108 that provides hospital expense, surgical expense or mental health expense insurance or a group blanket or general policy of accident, sickness or mental health insurance issued under section 110 that provides hospital expense, surgical expense or mental health insurance that is issued or renewed within or without the commonwealth shall provide coverage for accessing nature as a medical treatment when prescribed pursuant to section 42E of chapter 112, as mental health services when prescribed pursuant to section 42F of said chapter 112 and as social rehabilitation services when referred pursuant to section 42G of said chapter 112.

SECTION 6. Chapter 176A of the General Laws, as so appearing, is hereby amended by inserting after section 8UU the following section:-

Section 8VV. Any contract between a subscriber and the corporation under an individual or group hospital service plan that is delivered, issued or renewed within the commonwealth shall provide coverage for accessing nature as a medical treatment when prescribed pursuant to

section 42E of chapter 112, as mental health services when prescribed pursuant to section 42F of said chapter 112 and as social rehabilitation services when referred pursuant to section 42G of said chapter 112.

SECTION 7. Chapter 176B of the General Laws, as so appearing, is hereby amended by inserting after section 4UU the following section:-

Section 4VV. A subscription certificate under an individual or group medical or mental health service agreement delivered, issued or renewed within the commonwealth shall provide coverage for accessing nature as a medical treatment when prescribed pursuant to section 42E of chapter 112, as mental health services when prescribed pursuant to section 42F of said chapter 112 and as social rehabilitation services when referred pursuant to section 42G of said chapter 112.

SECTION 8. Chapter 176G of the General Laws, as so appearing, is hereby amended by inserting after section 4MM the following section:-

Section 4NN. An individual or group health maintenance contract that is issued or renewed within or without the commonwealth shall provide coverage for accessing nature as a medical treatment when prescribed pursuant to section 42E of chapter 112, as mental health services when prescribed pursuant to section 42F of said chapter 112 and as social rehabilitation services when referred pursuant to section 42G of said chapter 112.

SECTION 9. (a) Notwithstanding any general or special law to the contrary, the commissioner of the department of public health and the commissioner of the department of conservation and recreation shall jointly review existing programs and budgets to identify opportunities for collaboration on developing and implementing outdoor environmental,

ecological, agricultural and other natural resource or outdoor-based therapy programs. This review shall include evaluation of the equitable access to existing natural resource areas and strategies for ensuring that black, indigenous and people of color, environmental justice and other underrepresented community members feel safe and welcome when visiting these natural resource areas.

(b) The commissioner of the department of public health and the commissioner of the department of conservation and recreation shall jointly submit a report of their review and findings by filing the report with the clerks of the house of representatives and the senate not later than September 30, 2024.

SECTION 10. This act shall be known as the H.E.R.O. Nurturing Center Making Nature Prescriptive Act